



General Terms of Business

of Regen Studio B.V.

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Translation note. This English version is provided for convenience. In case of any discrepancy in interpretation between this English version and the canonical Dutch version (regenstudio.world/nl/voorwaarden), the **Dutch version prevails** (see §A2.6).

These General Terms of Business apply to all Proposals, Engagements and Agreements of Regen Studio B.V. (Dutch Chamber of Commerce no. 90337948). The document consists of three modules — **Module A** (universal provisions) is always leading; **Module B** (commercial default) applies to private-sector clients; **Module C** (public-sector variant) applies to engagements with public-sector clients and prevails over Module B in that case.

MODULE A

Universal Provisions

Definitions, applicability, force majeure, governing law, notices, AI tooling and DPA pointer. Always leading.

MODULE B

Commercial Default

IP rights retention, liability, 30-day payment + statutory commercial interest, confidentiality, termination. Default for private-sector clients.

MODULE C

Public Sector Variant

IP transfer, extended uncapped liability, public-access acknowledgement, Open-Publication addendum. For public-sector clients; prevails over Module B.

Data Processing Agreement (DPA). Where the Services involve processing of Personal Data or use of AI on personal/business data, the Parties execute a separate Data Processing Agreement (Art 28 GDPR) prior to performance — sent and signed separately. In case of conflict, the DPA prevails (see §A6).

MODULE A — UNIVERSAL PROVISIONS

§1 Definitions

In these General Terms of Business the following terms have the meanings set out below (in singular and plural):

- 1 **Regen Studio** (also "Contractor") — Regen Studio B.V., registered at Stollenbergweg 43, 6571 AB Berg en Dal, the Netherlands, Dutch CoC 90337948, VAT NL865282377B01.
- 2 **Client** — the natural person or legal entity to whom Regen Studio issues a Proposal or with whom it enters into an Engagement.
- 3 **Proposal** — the offer or quotation issued by Regen Studio, including these General Terms of Business as an annex.
- 4 **Engagement** — the agreement of assignment concluded between the Parties within the meaning of Article 7:400 of the Dutch Civil Code, comprising the Proposal and these General Terms of Business.
- 5 **Services** — the activities described in the Proposal.
- 6 **Deliverables** — the reports, documents, software, data products or other works delivered by Regen Studio in the course of the Services.
- 7 **IP Rights** — all intellectual property rights, including copyrights, patents, design rights, database rights, trademark rights, know-how and related rights.
- 8 **Background IP** — IP Rights owned by a Party prior to the Engagement or arising outside the Engagement.
- 9 **Foreground IP** — IP Rights arising in the course of performing the Services.
- 10 **GDPR** — Regulation (EU) 2016/679 (General Data Protection Regulation).
- 11 **AI Regulation** — Regulation (EU) 2024/1689 (AI Act).
- 12 **Personal Data** — as defined in Article 4(1) GDPR.
- 13 **Data Processing Agreement (DPA)** — the separate agreement between the Parties pursuant to Article 28 GDPR, sent and signed separately.
- 14 **Public Sector Client** — a legal entity under public law, including the Dutch State, provinces, municipalities, water authorities, EU institutions, or collaborative bodies of such entities.
- 15 **Module A / B / C** — the three modules of these General Terms of Business as described on the cover and in §2.
- 16 **Confidential Information** — as defined in §B4.

§2 Applicability and module structure

- 1 These General Terms of Business apply to all Proposals and Engagements of Regen Studio.
- 2 **Module structure.** Module A always applies. Module B applies to Engagements with private-sector clients. Module C applies to Engagements with a Public Sector Client and in that case prevails over the corresponding provisions of Module B. The modules are cumulative; in case of conflict, Module C prevails.
- 3 The applicability of the Client's general (procurement) terms is expressly excluded, except in the case of a Public Sector Client — in which case §C7 applies — or where the Proposal expressly agrees otherwise.
- 4 These General Terms of Business have been made available to the Client prior to or upon conclusion of the Agreement by inclusion as an annex to the Proposal, or digitally via regenstudio.world/nl/voorwaarden with PDF download and storage capability, in accordance with Article 6:234(1) of the Dutch Civil Code.
- 5 **Precedence of the Proposal.** Unless expressly agreed otherwise in the Proposal, the provisions of these General Terms of Business apply in full. The Proposal may deviate on specific matters; in such cases the Proposal prevails on those matters.
- 6 **Language.** This English version is a translation of the canonical Dutch version. In case of any discrepancy in interpretation between the two versions, the Dutch version prevails.

MODULE A — UNIVERSAL PROVISIONS (CONTINUED)

§3 Force majeure

- 1 In the event of force majeure within the meaning of Article 6:75 of the Dutch Civil Code, neither Party is obliged to perform its obligations for the duration of such force majeure.
- 2 Force majeure includes (non-exhaustive): war and armed conflict; sanctions and export restrictions; pandemics and epidemics; strikes and labour disputes at Regen Studio or its sub-processors; energy and telecommunications outages; cyber-attack, ransomware or comparable security incidents; binding governmental measures preventing performance; structural failure of a sub-processor or service provider engaged by Regen Studio.
- 3 The Party invoking force majeure shall notify the other Party as soon as reasonably possible.
- 4 Force majeure does not relieve the Parties of statutory notification obligations, including the personal-data-breach notification duty under Articles 33 and 34 GDPR and NIS2 notification duties where applicable.

§4 Governing law and jurisdiction

- 1 Dutch law applies to all Proposals, Engagements and these General Terms of Business.
- 2 Disputes shall be submitted to the competent court in the district of The Hague, the Netherlands, without prejudice to Regen Studio's right to summon the Client before the otherwise competent court.
- 3 The Parties shall endeavour to resolve disputes first through good-faith negotiation; failing that, through mediation under the Dutch MfN Mediation Rules, before approaching the competent court — without prejudice to interim and conservatory measures.

§5 Notices, severability, amendments, waiver

- 1 Notices under this Agreement shall be in writing, by e-mail to the contact persons specified in the Proposal, and shall be deemed received on the business day following dispatch unless proven otherwise.
- 2 If any provision is held to be null and void or voidable, the remaining provisions shall remain in full force. The Parties shall replace the null provision with a valid provision approximating the original intent as closely as possible.
- 3 Amendments to or additions to the Agreement are only valid if agreed in writing and designated as an amendment.
- 4 Failure or delay to exercise a right does not constitute a waiver of that right.
- 5 In the event of transfer of business or merger/division of the Client, these General Terms of Business shall continue to apply vis-à-vis the legal successor.

§6 AI tooling and Data Processing Agreement

Regen Studio may use generative AI tooling in the performance of the Services; **Client data and Personal Data are not used for the training or fine-tuning of third-party AI models.** Where the Services involve processing of Personal Data, or use of AI on personal or business data, the Parties execute a separate **Data Processing Agreement** in accordance with Article 28 GDPR prior to performance, sent and signed separately. In case of conflict between these General Terms of Business and the DPA, the DPA prevails.

MODULE B — COMMERCIAL DEFAULT (PRIVATE-SECTOR CLIENTS)

§B1 Intellectual property rights

- 1 Background IP remains the property of the Party that contributed it.
- 2 Foreground IP arising in the course of the Services rests with Regen Studio.
- 3 Upon full performance by the Client of its obligations — including full payment — Regen Studio grants the Client a **worldwide, perpetual, irrevocable, royalty-free, sublicensable licence** to use the Foreground IP and — to the extent necessary for such use — Regen Studio's Background IP, for the purposes set out in the Proposal.
- 4 Regen Studio retains the right to apply reusable methodology, generic components and know-how elsewhere.
- 5 Regen Studio performs no IP-rights research (such as patent or trademark searches) and does not warrant that the Foreground IP falls outside any third-party IP registration; Regen Studio does warrant that to the best of its knowledge it does not infringe third-party IP Rights.

§B2 Liability

- 1 Regen Studio's total liability for direct damages per event (or series of connected events) is limited to the fees paid or owed by the Client under the Engagement in the **twelve months** preceding the damage-causing event, capped at **€100,000 per event** and **€250,000 per calendar year**, save for any payment under the professional liability insurance (§B7), in which case the insured amount prevails.
- 2 Liability for loss, damage or corruption of data is limited to the reasonable costs of reconstruction from back-ups maintained by the Client, subject to the cap in B2.1.
- 3 Regen Studio is not liable for consequential damages, including loss of profit, loss of savings, loss of reputation or goodwill, loss of data other than B2.2, business-interruption damages and fines or penalties — except for damages under Article 82 GDPR and Article 99 AI Regulation.
- 4 **The limitations in B2.1–B2.3 do NOT apply to:**
 - intent or wilful recklessness of Regen Studio or its executive officers;
 - death or personal injury;
 - liability for infringement of third-party IP Rights through Foreground IP;
 - liability towards data subjects under Article 82 GDPR and administrative fines under Article 83 GDPR;
 - liability under Article 99 AI Regulation.
- 5 Indemnification. Regen Studio and the Client each indemnify the other against third-party claims to the extent arising from the indemnifying Party's own attributable breach, subject to the limits set out in this Article.

§B3 Fees and payment

- 1 The fee for the Services is set out in the Proposal — as a fixed price or as an hourly rate multiplied by hours — all amounts exclusive of VAT and statutory levies.
- 2 Unless otherwise agreed, Regen Studio invoices monthly or upon delivery of Deliverables.
- 3 **Payment term: 30 days** after invoice date, in accordance with Article 6:119a(4) of the Dutch Civil Code.
- 4 In case of late payment, the Client owes, by operation of law and without notice of default, the **statutory commercial interest** under Article 6:119a of the Dutch Civil Code, as well as extrajudicial collection costs under Article 6:96(2)–(4) of the Dutch Civil Code.
- 5 The Client may not invoke suspension, set-off or counterclaim with respect to payment obligations, save for an attributable breach by Regen Studio that has been acknowledged by Regen Studio or established by a court judgment that has become final.

MODULE B — COMMERCIAL DEFAULT (CONTINUED)

§B4 Confidentiality (3-tier classification)

- 1 **Confidential Information** means all information of a Party received by the other Party or of which it becomes aware, that can reasonably be understood as confidential, regardless of form (oral, electronic, written).
- 2 **Classification in three tiers:**
 - **T1 — Routine:** generic project status, fee structures, non-sensitive administration. Confidentiality term: **2 years** after termination of the Engagement.
 - **T2 — Substantive:** strategy documents, internal procedures, non-public partner names, commercial pipelines. Confidentiality term: **5 years** after termination. *Default classification* unless otherwise specified.
 - **T3 — Trade Secret / Personal Data:** trade secrets within the meaning of the Dutch Trade Secrets Protection Act (2018), Personal Data within the meaning of GDPR. Confidentiality term: **unlimited** for as long as the classification criteria continue to be met.
- 3 Confidential Information does not include: (i) information already lawfully known to the receiving Party at the time of disclosure; (ii) received from a third party without confidentiality obligation; (iii) publicly available or that becomes so without breach of this Agreement; (iv) independently developed by the receiving Party without use of the Confidential Information; (v) required to be disclosed by law or a competent authority.
- 4 If the Parties have separately entered into a non-disclosure agreement (NDA) on the same subject, the **more protective provision** prevails on specific items; in case of equal protection, the NDA prevails on confidentiality-specific matters and these General Terms of Business remain leading for the remainder.

§B5 Termination

- 1 The **Client** may terminate the Agreement at any time observing a reasonable notice period (Article 7:408(1) of the Dutch Civil Code). Upon termination the Client is obliged to pay (i) work already performed up to the end date, and (ii) a **cancellation fee equal to 50%** of the remaining fixed fee or planned hours reserved, to the extent Regen Studio cannot reasonably reallocate this capacity to other engagements.
- 2 **Regen Studio** may only terminate the Agreement for **compelling reasons** within the meaning of Article 7:408(2) of the Dutch Civil Code.
- 3 Either Party may terminate with immediate effect if (a) the counterparty is in attributable breach and such breach, where capable of remedy, is not remedied within **15 days** after written notice of default (Article 6:82 of the Dutch Civil Code); (b) the counterparty becomes insolvent, enters suspension of payments or WHOA debt-restructuring proceedings, or announces cessation of its business.
- 4 The applicability of **Article 7:404 of the Dutch Civil Code** and **Article 7:407(2) of the Dutch Civil Code** is expressly excluded.

§B6 Complaint duty and forfeiture

The Client shall notify Regen Studio of complaints about the Services or Deliverables in writing and with substantiation within **30 days of discovery**, and in any case within **60 days of delivery**, on penalty of forfeiture of rights within the meaning of Article 6:89 of the Dutch Civil Code.

§B7 Professional liability insurance

Regen Studio maintains professional liability insurance with coverage of at least **€500,000 per year**; a current certificate of insurance is available upon request.

MODULE C — PUBLIC SECTOR VARIANT

Module C applies when the Client is a Public Sector Client (§1.14) and in that case prevails over the corresponding provisions of Module B.

§C1 Intellectual property rights (public sector)

- 1 By way of derogation from §B1.2–B1.3, the Foreground IP rights in Deliverables specifically developed for the Client vest in **the Client**, effective upon the Client's written acceptance and full payment.
- 2 Where the transfer of IP Rights requires formalities — such as Article 2 of the Dutch Copyright Act for copyrights — Regen Studio **irrevocably authorises** the Client to execute the required deed of transfer on Regen Studio's behalf (mutatis mutandis ARBIT-2022 §8.4). Upon first request, Regen Studio shall cooperate with such formalisation.
- 3 The Client grants Regen Studio a **perpetual, worldwide, royalty-free, sublicensable licence** to use the transferred Foreground IP to reuse methodology, generic components and know-how in other engagements — without limiting the Client's right of use.
- 4 Regen Studio's Background IP remains the property of Regen Studio; Regen Studio grants the Client the licence described in §B1.3 to the extent necessary to use the Deliverables.

§C2 Liability (public-sector supplement)

- 1 In addition to §B2.4, Regen Studio accepts **unlimited liability** for: (a) damages to data subjects under Article 82 GDPR; (b) fines and sanctions under Article 99 AI Regulation; (c) indemnification for infringement of third-party IP Rights through Deliverables provided by Regen Studio; (d) personal-data-breach damages to the extent attributable to Regen Studio.
- 2 The other limitations of §B2 remain in force, without prejudice to any higher caps arising from applicable public-sector procurement terms (see §C7).

§C3 Dutch Open Government Act

Regen Studio acknowledges that documents under the Engagement may be subject to the passive publication duty under the Dutch Open Government Act (Wet Open Overheid / WOO). Upon delivery, Regen Studio shall mark portions of documents that in its view qualify as business-confidential under Article 5.1 WOO. The final assessment of exemption grounds rests with the Client.

§C4 Social Return

For Engagements with an award amount below the threshold for Social Return obligations under the Dutch Proportionality Guide (Gids Proportionaliteit) and the relevant municipal Social Return policy rules, Regen Studio declares it complies with the proportionality principles; application of a 5% Social Return obligation does not apply in such cases.

§C5 Subcontracting

By way of derogation from the main rule whereby Regen Studio may freely engage subcontractors, for Engagements with a Public Sector Client **prior written consent** of the Client is required to engage subcontractors for core tasks of the Engagement. Engagement of AI sub-processors remains permitted within the framework set out in §A6 and in accordance with the Data Processing Agreement.

MODULE C — CLOSING (OPEN-PUBLICATION · PROCUREMENT TERMS · COHERENCE)**§C6 Open-Publication addendum**

- 1 For Deliverables designated as **Open-Publication Deliverable** in the Proposal, the Client selects an open licence from the following menu: (a) documents / content / imagery: **CC-BY-4.0** or **CC-BY-SA-4.0**; (b) source code: **EUPL-1.2**, **MIT** or **Apache-2.0**; (c) mixed deliverables (code + documentation): **EUPL-1.2** for the code component and **CC-BY-4.0** for the documentation component.
- 2 Regen Studio retains a perpetual, worldwide, royalty-free, sublicensable usage licence on the Open-Publication Deliverable for its own reference, training, demonstration and reuse.
- 3 Upon publication, the Client shall include an attribution line: *"Originally produced by Regen Studio B.V., [year]"*, in accordance with the chosen CC-BY / EUPL attribution clause.

§C7 Precedence of public-sector procurement terms

- 1 If the Engagement is subject to the Client's general procurement terms — such as the **VNG Model General Procurement Terms**, **GIBIT**, **ARBIT**, **ARVODI** or a municipality-specific variant — these procurement terms prevail on matters exhaustively regulated therein.
- 2 Module C applies to such Engagements as supplementary provisions for matters not exhaustively regulated in the procurement terms. Module A continues to apply in full unless expressly excluded.

Closing Filing, version, coherence

These General Terms of Business have been filed with the Dutch Chamber of Commerce under CoC 90337948 and are continuously available at regenstudio.world/nl/voorwaarden. **Version 2.0**, adopted 3 June 2026. Supersedes earlier versions. Applies to all Proposals and Engagements concluded on or after the date of adoption. A paper copy is available free of charge on request.

Coherence with other documents. These General Terms of Business are one of four interrelated documents in the Regen Studio contracting stack: **Proposal / Quotation** (lean commercial offer), **General Terms of Business v2.0** (this document, legal framework), **Project Plan** (substantive description), **Data Processing Agreement (DPA)** (separate Art 28 GDPR agreement, if Personal Data are processed). In case of conflict between the Proposal and the General Terms of Business on commercial matters, the Proposal prevails (§A2.5). In case of conflict on legal matters, these General Terms of Business prevail. In case of conflict on personal-data matters, the DPA prevails (§A6). **In case of any discrepancy in interpretation between this English version and the canonical Dutch version, the Dutch version prevails (§A2.6).**